

Translation Services



Recapping week 1

- Last week we were castaway to a far away island, where we wrote out a set of rules that are governing our society
- We set out the purpose of constitutions, and the different types of constitutions
- We looked at the creation of state institutions and the importance of balancing powers



The Constitution

A general background

19 Feb 2026



GENERAL BACKGROUND

- The Constitution of the Republic of South Africa, 1996 is the **Supreme law** of the Republic of South Africa
 - Provides legal foundation for the existence of the Country,
 - Envisages a society that is committed to democratic values, social justice and fundamental human rights
 - Sets out the rights and duties of citizens
 - Defines the structures of government



GENERAL BACKGROUND



- For centuries, South Africa was governed by the oppressive systems of **Colonialism and Apartheid**
- The majority of the population was disenfranchised and disempowered
- In the 1990's South Africa went through many radical changes, replacing the system of Apartheid with a system of **constitutional democracy.**



GENERAL BACKGROUND



- The current Constitution was promulgated by Nelson Mandela on the 18th December 1996 and came into effect on 4 February 1997
- The Constitution has been amended 18 times.
- As the highest law in the country, NO other law may contradict or be in conflict with the constitution



Contents of the Constitution

- The Constitution consists of:
 - A preamble
 - 14 Chapters, and
 - 7 Schedules
 - Each Chapter deals with a particular topic
 - Chapter 1 Founding Provisions
 - Chapter 2 Bill of Rights
 - Chapter 4 Parliament
 - Chapter 9 State institutions



Contents of the Constitution

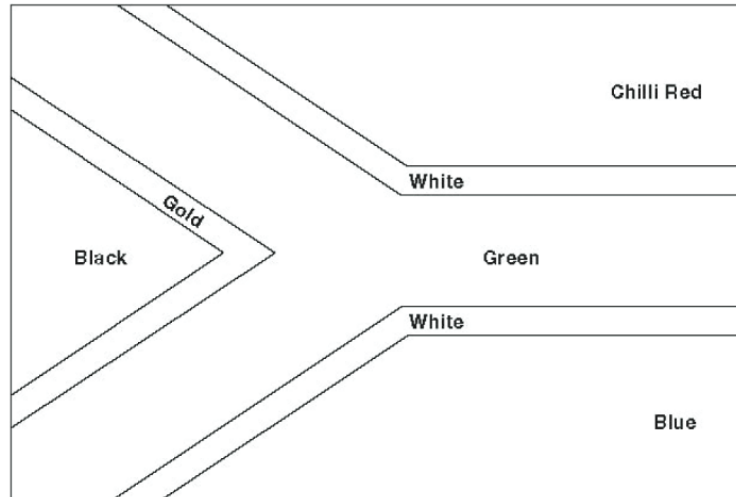
- 7 Schedules
 - These schedules provide specific, supplementary information relating to various sections of the constitution, including details on the national flag, provincial boundaries, oaths of office, election procedures, and legislative competencies
 - Schedule 1 – The National Flag
 - Schedule 3 Election procedures



SCHEDULE 1

National Flag

- (1) The national flag is rectangular; it is one and a half times longer than it is wide.
- (2) It is black, gold, green, white, chilli red and blue.
- (3) It has a green Y-shaped band that is one fifth as wide as the flag. The centre lines of the band start in the top and bottom corners next to the flag post, converge in the centre of the flag, and continue horizontally to the middle of the free edge.
- (4) The green band is edged, above and below in white, and towards the flag post end, in gold. Each edging is one fifteenth as wide as the flag.
- (5) The triangle next to the flag post is black.
- (6) The upper horizontal band is chilli red and the lower horizontal band is blue. These bands are each one third as wide as the flag.



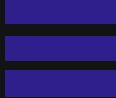
The Preamble





General Purpose of a Pre-amble



- Found at the start of a constitution
 - States the basic purpose of the constitution, underlying principles, and historical context
 - Provisions **not binding**, but serve as a guide to the interpretation of the constitution
 - Sets out the goals and values of the constitution
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WE, THE PEOPLE OF SOUTH AFRICA

RECOGNISE THE INJUSTICES OF OUR PAST,
HONOUR THOSE WHO SUFFERED FOR JUSTICE AND FREEDOM IN OUR LAND,
RESPECT THOSE WHO HAVE WORKED TO BUILD AND DEVELOP OUR COUNTRY
AND BELIEVE THAT SOUTH AFRICA BELONGS TO ALL WHO LIVE IN IT.
UNITED IN OUR DIVERSITY.

WE THEREFORE, THROUGH OUR FREELY ELECTED REPRESENTATIVES, ADOPT
THIS CONSTITUTION AS THE SUPREME LAW OF THE REPUBLIC SO AS TO:

HEAL THE DIVISIONS OF THE PAST
AND ESTABLISH A SOCIETY BASED ON DEMOCRATIC VALUES,
SOCIAL JUSTICE AND FUNDAMENTAL HUMAN RIGHTS.

LAY THE FOUNDATIONS FOR A
DEMOCRATIC AND OPEN SOCIETY IN WHICH GOV-
ERNMENT IS BASED ON THE WILL OF THE PEOPLE
& EVERY CITIZEN IS EQUALLY PROTECTED BY LAW.

IMPROVE THE QUALITY OF LIFE
OF ALL CITIZENS & FREE THE POTENTIAL OF EACH PERSON &

BUILD A UNITED AND DEMOCRATIC
SOUTH AFRICA ABLE TO TAKE ITS RIGHTFUL PLACE
AS A SOVEREIGN STATE IN THE FAMILY OF NATIONS.

MAY GOD PROTECT OUR PEOPLE. NKOSI SIKELEL' IAFRIKA. MORENA
BOLOKA SETJHABA SA HESO. GOD SEËN SUID-AFRIKA. GOD BLESS SOUTH
AFRICA MUDZIMU FHATUTSHEDZA AFURIKA. HOSI KATEKISA AFRIKA.

FROM THE PREAMBLE OF THE CONSTITUTION OF SOUTH AFRICA | Share, download and live our Constitution. Go to www.bit.ly/OurConstitutionSA





Purpose of the SA Constitutions

Pre-amble

- *City of Tshwane Metropolitan Municipality v Afriforum* [2016] ZACC

“A preamble is after all a succinct expressionary statement that sets out a constitution’s purpose and underlying philosophy. By design and like all others, our **Preamble captures the essential principles** by which we the people seek to govern our affairs. [The preamble] is such a crucial part of our Constitution that, if only every citizen were to internalise it and live according to its terms, **our aspirations** would most likely be expeditiously realised.” [para 5]





Key Themes of the Pre-amble

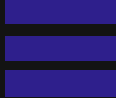


- 1) Recognition of the Past:** Acknowledges the injustices of colonialism and apartheid.
 - 2) Honouring Heroes:** Respects those who struggled for justice and freedom.
 - 3) Unity in Diversity:** Declares South Africa belongs to all who live in it, united in diversity.
 - 4) Healing & Reconciliation:** Aims to heal past divisions.
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Key Themes of the Pre-amble

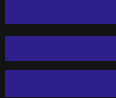


- 5) **Founding Values:** Establishes a society based on democratic values, social justice, and human rights, with equality, non-racialism and non-sexism.
 - 6) **Open & Democratic Society:** Lays the foundations for the rule of law and government by the people.
 - 7) **Improved Quality of Life:** Seeks to free the potential of each person.
 - 8 **Global Standing:** Aims to build a united South Africa, taking its rightful place internationally.
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Recognition of the Past

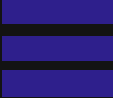


- Constitutional vision is grounded in the present reality faced by many South African's
 - Acknowledgement of **Colonial and Apartheid Past**, which created an unjust and unequal Society
 - Wealth, resources and status were based on Race, Gender and Class
 - The Constitution seeks to **CHANGE** this sort of Society
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Apartheid and Colonialism



- **Colonialism:** The policy or practice of acquiring full or partial political control over another country, occupying it with settlers, and exploiting it economically. he policy or practice of acquiring full or partial political control over another country, occupying it with settlers, and exploiting it economically.
 - **Apartheid:** Apartheid (meaning "apartness" in Afrikaans) was an official policy of institutionalised racial segregation and white supremacy in South Africa from 1948 until the early 1990s. It enforced strict separation of racial groups, stripping black South Africans of their citizenship, rights, and land to empower the white minority.
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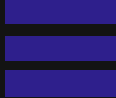
Apartheid and Colonialism:

Connections:

- Land dispossession
- Labour Exploitation
- Systemic Inequality
- Political disfranchisement

Legacy

Much of today's polarisation, poverty, and land inequality in South African society are the direct and continuing consequences of these systems

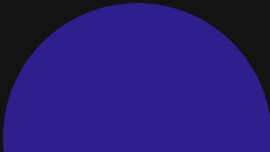




Castaways

Part 2

Class Activity 2



Considerations

- Its been 20 years since you first landed on the uninhabited island
- A brand new group of castways have now washup on your island
- The original inhibitors of the island have named all the places after their own heros and own history on the island
- The new islanders feel they do not belong
 - Does the island “belong” to everyone?
 - Or mostly to the founders?

Group Task

- Get into small groups
- Draft a short preamble (5-6 lines) for the island constitution
- The preamble should:
 - Recognise any past injustices that may have occurred on the island (exclusion, domination even the infamous cannibalism?)
 - Explain who belongs on the island
 - Commit to unity in diversity
 - Articulate the shared values that will guide the island going forward
- The answer the following
 - Based on this preamble if the newcomers requested a change to the place names on the island, would they
 - Preserve the founders names
 - Rename some places to reflect greater belonging and diversity

Group Task

- Now answer the following:
- If newcomers request that some of the island's place names be changed, based on Your Pre-amble would you
 - Preserve the founders names in full
 - Rename some places to reflect greater belonging and diversity
 - Adopt a compromised position?
- You must justify your answer using the values you've expressed in your preamble